Australian Government

Australian Fisheries Management Authority

DIRECTION NOT TO ENGAGE IN FISHING

Fisheries Management Act 1991
Subsection 41A(2)

SOUTHERN AND EASTERN SCALEFISH AND SHARK FISHERY (Closures) DIRECTION No. 2 2015

I, **JAMES FINDLAY**, Chief Executive Officer of the Australian Fisheries Management Authority, as delegate under delegation No. 6 of 2013 made on 16 September 2013 from the Commission, make the following Direction under subsection 41A(2) of the *Fisheries Management Act 1991*.

Dated: 6 May 2015

James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

Citation

1. This Direction may be cited as the *Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 2 2015*.

Commencement

2. This Direction commences on the day after registration.

Cessation

3. This Direction ceases as if it was revoked on 1 May 2020 unless earlier revoked.

Interpretation

4. Terms used in this Direction that are defined for the purposes of the *Southern and Eastern Scalefish and Shark Fishery Management Plan 2003* (the Plan) have the same meanings in this Direction as they have in the Plan.

All geographic coordinates contained within the schedules attached to this document are in terms of the Geocentric Datum of Australia 1994 (GDA94).

Unless otherwise stated, the lines between coordinates are geodesics.

Notes: 1. Terms defined in the *Fisheries Management Act 1991* have the same meanings in this Direction.

To whom this Direction applies

5. This Direction applies to a holder of a fishing concession in the Southern and Eastern Scalefish and Shark Fishery and to a person acting on behalf of the holder.

Direction not to engage in fishing

6. Fishing is not to be engaged in using any method in the areas described in Schedule 1, 2 and 3.

Exemption to the prohibition

7. Clause 6 only applies to concession holders whose concession conditions restrict the holder to a daily catch limit of Pink Ling (*Genypterus blacodes*).

SCHEDULE 1

Maria Island

The area of Maria Island is the part of the Australian Fishing Zone contained within and bounded by a line:

a) commencing at the point of latitude 42° 42.000' south, longitude 148° 21.000' east, and running progressively;
b) east along the parallel of latitude 42° 42.000' south to its intersection with the meridian of longitude 148° 26.000' east;
c) then south along the parallel of longitude 148° 26.000' east to its intersection with the meridian of latitude 42° 45.000' south;
d) then west along the parallel of latitude 42° 45.000' south to its intersection with the meridian of longitude 148° 21.000' east;
e) then north to the point of commencement.

SCHEDULE 2

Seiner's Horseshoe

The area of Seiner's Horseshoe is the part of the Australian Fishing Zone contained within and bounded by a line:

a) commencing at the point of latitude 38° 18.374' south, longitude 148° 35.870' east, and running progressively;
b) east along the parallel of latitude 38° 18.374' south to its intersection with the meridian of longitude 148° 40.236' east;
c) then south-easterly along the geodesic to the point of latitude 38° 27.116' south, longitude 148° 45.124' east;
d) then south-westerly along the geodesic to the point of latitude 38° 31.829' south, longitude 148° 32.703' east;
e) then north north-easterly to the point of commencement.

SCHEDULE 3

Everard Horseshoe

The area of Everard Horseshoe is the part of the Australian Fishing Zone contained within and bounded by a line:

a) commencing at the point of latitude 38° 04.914' south, longitude 149° 21.490' east, and running progressively;
b) easterly along the geodesic to the point of latitude 38° 04.788' south, longitude 149° 24.089' east;
c) then south-easterly along the geodesic to the point of latitude 38° 09.837' south, longitude 149° 33.324' east;
d) then southerly along the geodesic to the point of latitude 38° 16.500' south, longitude 149° 32.912' east;
e) then west along the parallel of latitude 38° 16.500' south to its intersection with the meridian of longitude 149° 26.800' east;
f) then north-easterly along the geodesic to the point of latitude 38° 13.151' south, longitude 149° 30.083' east;
g) then north-westerly to the point of commencement.